

There are prerequisites for substitute service. The plaintiff must first make a good faith effort to personally serve the defendant. “Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as “reasonable diligence.”” *Rodriguez v. Cho* (2015) 236 CA4th 742, 750, quoting *American Express Centurion Bank v. Zara* (2011) 199 CA4th 383, 389.

In the instant matter, the court finds that Plaintiff exercised reasonable diligence in attempting to personally serve Defendant, and that Plaintiff also mailed a copy of the process documents to Defendant after the apparent substitute service.

The court also finds, by a preponderance of the evidence, that Defendant actually received process. First, Defendant does not dispute this. But, second, the proof of service did not suggest the relationship of the co-resident to Defendant; it was the Defendant who identified this person as her son. It does not appear that Defendant could have known that it was her son who received the documents unless he, in fact, told her.

That Defendant received process supports the position that, at minimum, the service of process on the person identified in the proof of service was reasonably calculated to give the Defendant actual notice of the proceedings. It further lends credibility to the process server’s declaration that the recipient did, in fact, identify himself as the co-resident.

Disposition

Defendant’s Motion is denied.

Court to file Order.

Courtroom Clerk's Session

14. 1:31 PM CASE NUMBER: N26-0815
CASE NAME: MARY KESHISHIAN VS. CATHERINE GLENN
HEARING ON REQUEST FOR RESTRAINING ORDER
FILED BY:
TENTATIVE RULING:

15. 1:30 PM CASE NUMBER: RS25-0940
CASE NAME: MYA HODGES-WATSON VS. CHRISTOPHER COX